



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 11122
FIRST REVISION

NOV 16 1993

EXPIRATION DATE: December 31, 1993

1. GRANTEE: Monsanto Chemical Co., St. Louis, Missouri.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time shipment is transportation in commerce of 45 DOT Specification IM 101 portable tanks, overdue for visual inspection, containing chloronitrobenzene, para, solid, from St. Louis, Missouri to Newport, UK. This exemption provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.32c(c)
5. BASIS. The emergency exemption is based on Monsanto Chemical Company's application dated September 14, 1993, and supplemental information dated September 24, 1993, submitted in accordance with 49 CFR 107.113 and a determination that it is necessary to prevent serious economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
chloronitrobenzene, para, solid	6.1	UN1578	II

7. SAFETY CONTROL MEASURES:
 - a. PACKAGING - Packagings are 45 DOT Specification IM 101 portable tanks that have been in dedicated service and meet all requirements of 49 CFR except they are overdue for the required 2.5 year visual inspection. Tanks are identified by the following Container Numbers and inspection due dates:

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Container Number	Due Date	Container Number	Due Date	Container Number	Due Date
197094-4	6/93	197118-0	7/93	197134-4	8/93
197135-0	8/93	197136-5	8/93	197137-0	8/93
197139-1	8/93	197140-5	9/93	197143-1	9/93
197145-2	9/93	197147-3	8/93	198148-9	9/93
197160-0	9/93	913056-4	9/93	913057-0	9/93
913059-0	9/93	913060-4	9/93	913062-5	9/93
913066-7	9/93	913068-8	9/93	913069-3	9/93
913070-7	9/93	913072-8	9/93	913073-3	9/93
913074-9	9/93	913075-4	9/93	913076-0	9/93
913078-0	9/93	913079-6	10/93	913080-0	9/93
913081-5	9/93	913083-6	10/93	913085-7	10/93
913086-2	9/93	913089-9	10/93	913090-2	10/93
913093-9	10/93	913094-4	10/93	913096-5	10/93
913097-0	10/93	913098-6	10/93	913100-4	10/93
913102-5	10/93	913103-0	10/93	913104-6	10/93
		197154-0	9/93	913067-2	9/93

b. TESTING - No additional testing required.

c. MARKING - No additional marking required.

8. SPECIAL PROVISIONS.

a. Shippers using the packaging covered by this exemption must comply with the shipping paper, marking, labeling, and placarding requirements of 49 CFR Part 172; all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

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- b. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
- 9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight, cargo vessel.
- 10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each cargo vessel or motor vehicle used to transport packages covered by this exemption.
- 11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171.180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

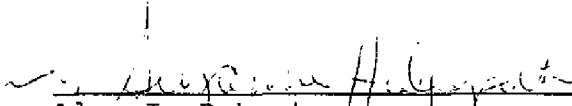
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12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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